

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-005
Amendments to Title 5 of the Chickasaw Nation Code
(Territorial Jurisdiction)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for Courts and Procedures, and

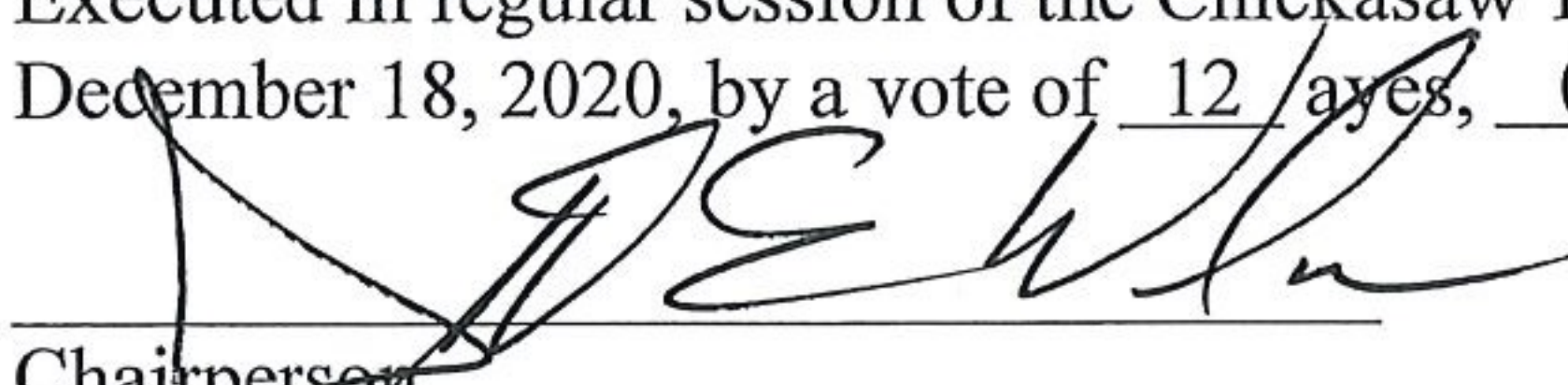
WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 2, Section 5-201.3 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through):

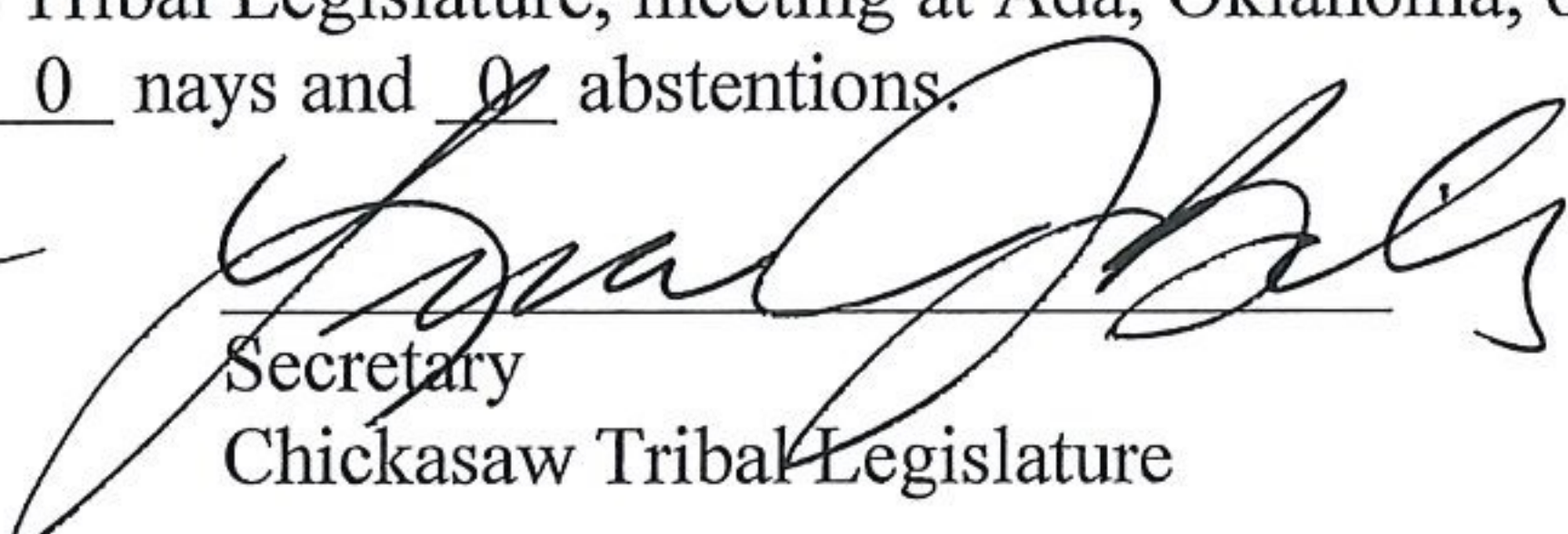
SECTION 5-201.3 **TERRITORIAL JURISDICTION.**

The territorial jurisdiction of the Court shall extend to all territory described as Indian Country within the meaning of Section 1151 of Title 18 of the United States Code over which the Chickasaw Nation has authority, ~~including tribal or individual, trust, non-trust and restricted land, and including all land owned by tribal agencies in their own name, all waters, minerals and wildlife, and any other such land, or interest in land, which may be subsequently acquired by virtue of Executive Order, a declaration or regulation of the United States Department of Interior, a declaration or order of any Court of competent jurisdiction, by purchase, gift, relinquishment, or by any other lawful means.~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on December 18, 2020, by a vote of 12 ayes, 0 nays and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 18 2020

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Explanation:

This resolution amends the current section in Title 5. The amended section clarifies the Chickasaw Nation's territorial jurisdiction within the Chickasaw Nation's treaty territory.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature